

#	Case Name	Tentative
49	Reichert vs. Wightman 25-01481529	1. Motion to Be Relieved as Counsel of Record 2. Motion to Be Relieved as Counsel of Record No Tentative Ruling. Parties to Appear.
51	Cui vs. Tang 22-01258644	Motion to Expunge Lis Pendens Plaintiff/Cross-Defendant Chelsea Cui’s motion to expunge the Notice of Pendency of Action recorded against the property located at 65 Dorado Irvine, California, APN 591-361-19 is GRANTED. Code of Civil Procedure section 405.30 authorizes a party or nonparty “with an interest in the real property” to file a motion to expunge the lis pendens. The court “shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim” (Code Civ. Proc., § 405.31), or the real property claim “lacks evidentiary merit.” (<i>Park 100 Investment Group II, LLC v. Ryan</i> (2009) 180 Cal.App.4th 795, 808.) The party opposing a motion to expunge a lis pendens has the burden to show that a real property claim has been alleged and has probable validity based upon a preponderance of the evidence. (Code Civ. Proc., §§ 405.30, 405.32.) Code of Civil Procedure section 405.4 provides: “ ‘Real property claim’ means the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property” (Code Civ. Proc., § 405.4. This section “defines the type of claim which must be pleaded to support a <i>lis pendens</i>. If the pleading filed by the claimant does not properly plead a real property claim, the lis pendens must be expunged upon motion under CCP 405.31.” (<i>BGI Associates, LLC v. Superior Court</i> (1999) 75 Cal.App.4th 952, 956 [citation omitted].) In deciding whether the pleading contains a real property claim, the court must engage in a demurrer-like analysis. The court considers the specific claim as pled to determine whether that claim is a real property claim. Only allegations are examined, not factual evidence. (<i>Kirkeby v. Superior Court</i> (2004) 33 Cal.4th 642, 650.)